

02:00 PM **LINE 5**

24-CIV-08329

JONATHAN YUN VS. TOYOTA MOTOR SALES, U.S.A., INC.

JONATHAN YUN
TOYOTA MOTOR SALES, U.S.A., INC.

ELLIOT CONN
SEAN D. BEATTY

Plaintiff's Motion to Compel Toyota Motor Sales, U.S.A., INC's Further Responses to Requests for Production of Documents

TENTATIVE RULING:

Plaintiff Jonathan Yun's Motion to Compel Further Responses to Requests for Production of Documents (RFP) from defendant Toyota Motor Sales, U.S.A., Inc. (Toyota) is **GRANTED**.

Plaintiff seeks to compel further responses to RFPs Nos. 1-5, 7-9, 20, 21, 25-28, and 31-33. A propounding party may move to compel further responses if the propounding party deems: (1) a statement of compliance with the demand is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; and/or (3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).) The motion shall set forth specific facts showing good cause justifying the discovery sought by the demand. (Code Civ. Proc., § 2031.310, subd. (b)(1).) If good cause is shown by the moving party, then the burden is on the responding party to justify any objections. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.)

A. Plaintiff has Established Good Cause for Ordering Further Responses as to RFPs Nos. 1-5, 7-9, 20 and 21

These requests pertain to documents concerning discovery of evidence of the pre-sale damage to the subject vehicle and Toyota's knowledge of the damage.

For RFPs Nos. 1, 2, 5, 8, 9 and 20, Toyota's responses are not code-compliant. Toyota claims that it agreed to produce documents in part subject to its objections, but the way Toyota's responses are written do not support this claim. By stating that it will produce documents in part and then specifying the certain documents it will produce, it leaves open whether there may be other responsive, non-privileged documents. Toyota is ordered to provide code-compliant responses to these requests. (See Code Civ. Proc., § 2031.220.)

Similarly, for RFPs Nos. 3, 4, 7 and 21, Toyota's responses also are not code-compliant. Toyota appears to be claiming an inability to comply with these requests, but it fails to sufficiently state the reason regarding its inability to comply as required under Code of Civil Procedure, section 2031.230.

The Motion is GRANTED, and Toyota is to provide supplemental, code-compliant responses to these RFP. Toyota already provided a privilege log for these RFPs, and plaintiff is not challenging the privilege objection.

B. Plaintiff has Established Good Cause for Ordering Further Responses as to RFPs Nos. 25, 26, and 31-33

These RFPs seek Toyota's relevant policy documents.

Plaintiff establishes good cause to justify these RFPs. Plaintiff also shows that Toyota agreed to produce these documents at the IDC. (Conn Decl., exh. K.)

Toyota responded only with objections to these RFPs. Toyota argues that the Motion is moot because it provided supplemental responses to these RFP after the filing of this Motion. (Guillot Decl., ¶ 20, and exh. E.) However, Toyota's supplemental responses continue to assert the same objections challenged by plaintiff in this Motion. As such, the court agrees with plaintiff that this Motion is not moot. (See *County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243, 255-256 [trial court did not err in ruling on motion to compel further responses to discovery despite county supplementing its responses while the discovery motions were pending].)

Toyota fails to address any of its objections in opposition, and therefore it fails to substantiate these objections.

The Motion is therefore GRANTED.

C. Plaintiff has Established Good Cause for Ordering Further Responses as to RFPs Nos. 27 and 28

These requests seek documents regarding Toyota's Pre-Litigation Evaluation.

Plaintiff once again establishes good cause for these documents. Toyota objected to these requests. Toyota claims that RFP No. 27 is overbroad because it requires a legal analysis of every Federal and California warranty law to determine which of them requires repurchase and replacement. This argument is without merit as it is limited only to the subject vehicle. Further, Toyota argues that these RFPs seek legal conclusions such that it properly objected based on privilege, yet it also claims that no responsive documents ever existed even though it fails to state so in its responses. The court agrees with plaintiff that Toyota's responses are evasive. Toyota is to provide supplemental, code-compliant responses. If Toyota is continuing to rely on privileges to object to these RFP, then it is ordered to provide a privilege log for any documents withheld based on these privileges.

D. Toyota's Request for Monetary Sanctions is Denied

Because the court grants Plaintiff's Motion, Toyota's Request for Monetary Sanctions is DENIED.

E. Supplemental Responses

Toyota is to provide supplemental responses and produce any responsive documents within twenty days of service of written notice of entry of order by plaintiff.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 6**

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ELLIOT CONN
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Plaintiff's Motion to Compel Toyota Motor Sales, U.S.A., Inc.'s Further Responses to Plaintiff's First Set of Special Interrogatories

TENTATIVE RULING:

Plaintiff Jonathan Yun's "Motion to Compel Toyota Motor Sales U.S.A., Inc.'s Further Responses to Plaintiff's First Set of Special Interrogatories, Nos. 15, 21-24," filed on February 6, 2026, is **GRANTED**.

Toyota Motor Sales U.S.A., Inc.'s request for monetary sanctions against plaintiff is **DENIED**.

As to Special Interrogatory Nos. 15 and 22-24 (which ask: "What are YOUR policies for repurchasing vehicles in accordance with the SONG-BEVERLY ACT"; "What are your policies regarding YOUR AUTHORIZED DEALERSHIPS selling vehicles that have sustained collision damage as 'new'?" and "What are YOUR policies regarding disclosing collision damage and body repairs on vehicles that have not been registered?" and "What are YOUR policies for repurchasing vehicles that have sustained pre-sale collision damage that are sold as 'new'?"), the Motion is **GRANTED-in-part**.

In response to each of these interrogatories, defendant asserts a number of objections, including privilege and work product protection. Toyota's response to Interrogatory No. 15 consists of a terse response, followed by several objections. Defendant's responses to Interrogatory Nos. 22-24 consist solely of objections.

In its Opposition papers, however, Toyota argues that it has already produced documents that contain information responsive to these interrogatories. Toyota appears to conflate producing documents with serving a proper interrogatory response. Toyota's Opposition argues that on February 12, 2026, it produced "supplemental confidential documents related to [Tyota's] policies and procedures for Lemon Law case management handling process flow chart and its warranty policy and procedures manual, subject to a stipulated protective order." (See Toyota's Separate Statement; Kriston Guillot Decl., ¶¶ 19-23.) Toyota's Opposition further explains that it needed to await entry of a Stipulated Protective Order before it could produce the above-referenced documents, and that it therefore did not produce the above-referenced "policy" documents until February 12, 2026. Given its document production, Toyota argues that no further response to these interrogatories is necessary.
